

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 24-12

20230930-DK-BUTTERFLY-1, INC. F/K/A BED BATH & BEYOND INC.

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC#011982) consisting of
EVERGREEN MARINE CORP. (TAIWAN) LTD., EVERGREEN MARINE (UK) LIMITED,
ITALIA MARITTIMA SpA, EVERGREEN MARINE (HONG KONG) LTD., AND
EVERGREEN MARINE (SINGAPORE) PTE. LTD.

**JOINT STATUS REPORT
AND MOTION TO EXTEND DEADLINES**

Pursuant to 46 C.F.R. Section 502.141(h), Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc.¹ (“BBBY”) and Respondents Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Ltd., Italia Marittima S.p.A., Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd. (collectively, “Evergreen” or “Respondents”) (BBBY, collectively with Evergreen, the “Parties”), by their respective undersigned counsel, have conferred and hereby submit this joint status report and motion to extend deadlines, and in support thereof state that good cause for the requested extension exists, as follows:

1. On April 15 and 24, 2025, the Parties held meet and confer discussions regarding the progress of discovery. During those meetings, the Parties discussed the progress of discovery, the technical difficulties faced by the Parties with the further electronic production

¹ BBBY filed a change of name certificate with the New York State Division of Corporations, State Records, and Uniform Commercial Code on September 21, 2023 by and through which Bed Bath & Beyond Inc. changed its corporate name to 20240930-DK-Butterfly-1, Inc.

of documents, the supplementation of BBBY's answers to interrogatories, and the approximate scope of depositions to be completed. Counsel agree that, under the circumstances, this Joint Status Report and Motion to Extend Deadlines is warranted for good cause and that extreme prejudice to both Parties would result if an extension of time to complete discovery were not granted.

Progress of Complainant regarding Discovery:

2. BBBY has made five document productions totaling 192,981 documents. In the course of preparing its privilege log, BBBY is still reviewing and conducting diligence on approximately 3,000 documents that were identified as containing privileged material. BBBY intends to produce a privilege log of such documents and to make a further small production of partially redacted documents. BBBY is continuing to review the productions that Evergreen has made to date and to evaluate whether such productions adequately respond to BBBY's discovery requests.

3. However, over 100,000 of the electronic documents that BBBY has produced could not be uploaded and opened by Evergreen based on technical issues causing those productions to appear corrupted. BBBY's e-discovery vendor has not found such an issue with the files, but is working to provide these productions again. The parties have been and are continuing to work with their e-discovery vendors to attempt to resolve this technical issue and are actively working to schedule a direct meeting between the vendors to resolve the issue.

4. Once those documents become available, Evergreen will staff additional attorneys on document review and estimates it will take approximately 30-days to complete first level review of those 100,000 documents. Evergreen must also evaluate whether such productions adequately respond to Evergreen's discovery requests and perform a higher level substantive

review by the attorneys who will take and defend depositions.

Progress of Respondents regarding Discovery:

5. Evergreen has made seven document productions, including 28,964 documents total.

6. Evergreen has engaged dozens of lawyers (at one time approximately 50) since early last fall. Those attorneys have been working five days per week plus some weekends and holidays in an effort to abide by the Commission's schedule in this case. The priority for Evergreen has been to first produce its own documents in response to BBY's document demands. Many of those documents, however, contain information pertaining to Evergreen's other customers (non-parties) with whom Evergreen has confidentiality agreements. Accordingly, Evergreen is required to redact the other customer information before producing such documents. Those redactions, however, were virtually crippled by technical issues between the document review software and the redaction software. Technical engineers for both the document review software supplier and the redaction software supplier have been working for several weeks attempting to resolve the technical issues limiting our ability to make the necessary redactions to the documents. Recently, however, the technical engineers for both software manufacturers believe they have resolved the technical issue and it is expected that the redaction software will help eliminate the need to manually redact many thousands of near and exact duplicate email attachments. Those redactions are expected to take approximately 30 additional business days. Evergreen expects to produce an additional 21,600 documents on a rolling basis as those redactions are completed over the next month.

As those still-forthcoming documents constitute a significant percentage of Evergreen's total anticipated production volume, once those documents have been produced, BBY must

also evaluate whether such productions adequately respond to BBY's discovery requests and perform a higher-level substantive review in order to prepare for taking and defending depositions in the case.

7. BBY is also working to update its responses to Evergreen's Interrogatories based on its own productions and the productions provided by Evergreen. BBY intends to provide rolling substantive responses but will need the benefit of Evergreen's full productions to finalize those responses. The parties have continued to meet and confer on these written discovery matters.

Prejudice to the Parties:

8. The Parties cannot efficiently or effectively take depositions until each of the Parties has had a meaningful opportunity to review the other's documents. As demonstrated above, BBY still has approximately 20,000 documents to receive and review from Evergreen (in addition to the ~30,000 already produced) and Evergreen still has approximately 100,000 to receive and review from BBY: both the result of ongoing technical issues that the Parties have independently and jointly worked to resolve on an expedited basis. Under the circumstances, the Parties believe that they will need at least two (2) months to review the remaining documents and prepare for depositions. Thus, it does not appear that depositions can proceed before July.

Settlement Discussions:

9. It should be noted that on March 26, 2025, BBY's counsel made a settlement demand to Evergreen, to which Evergreen responded with requests for clarification of certain information. BBY has agreed to provide Evergreen with additional information in an attempt to provide clarity. The Parties presently are engaging in good faith settlement discussions.

REQUEST FOR RELIEF

10. As a result of the significant technical issues faced by the Parties, delaying the Parties in completing their document productions, the necessarily large number of custodians and the significant time-period implicated by the Parties' claims and defenses in this action, and despite efforts by the Parties to limit the scope of discovery and their respective burdens, the Parties nonetheless are unable to complete discovery within the present deadlines.

11. The current schedule would cause extreme prejudice to the Parties, including preventing them from being able to prepare for and conduct efficient and effective depositions of key fact witnesses.

12. The Parties have conferred extensively to arrive at the schedule proposed herein, including holding meet and confer discussions on April 15, 2025 and April 24, 2025, in addition to many communications regarding technical issues and attempts to resolve them, to discuss how to move forward.

13. Complainant is seeking several million dollars in reparations in this case for conduct that allegedly occurred over the course of multiple years. Given the scope and complexity of the claims and defenses, and the challenges posed by the likely large number of third-party depositions, the Parties believe it would be most effective and efficient, and would preserve the Parties' due process rights, to allow the Parties to conduct fact depositions on the basis of a substantially complete documentary record, and not to be forced to take deposition testimony without the benefit of first having received and reviewed relevant documents and ESI for potential use in such depositions or without the benefit of answers to interrogatories.

14. Given the enormous volume of documents collected to date subject to the Parties' ESI Protocol, the significant volume of documents which have not yet been produced or

successfully accessed, and what will likely be at least two dozen fact depositions, the Parties respectfully and jointly request an extended discovery schedule as follows to permit completion of document review, allow for review and preparation of documents by both sides to prepare for depositions, and appropriate expert reports which will be detailed, significant, and necessarily depend on the facts of the case as brought out in discovery:

- July 31, 2025 Last day to serve interrogatories, requests for admission, and RFPs.
- August 30, 2025 Parties complete depositions of fact witnesses.
- September 30, 2025 Disclosure of parties' initial expert reports, if any.
- October 31, 2025 Disclosure of parties' rebuttal expert reports, if any.
- November 30, 2025 Complete expert depositions.
- November 30, 2025 Close of discovery.
- December 31, 2025 Complainant's brief, proposed findings of fact, and appendix.
- January 31, 2026 Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix.
- February 15, 2026 Complainant's reply brief and responses to proposed findings of fact.

15. In making this joint Motion, the Parties here have limited their request to the smallest amount of time in which they presently believe they can feasibly conduct discovery in this large, complex litigation, with the understanding that they will also continue to work to stipulate to facts, limit depositions, and expeditiously resolve discovery disputes and produce documents promptly and to the extent possible. Further, the parties have decompressed post-production discovery, including deposition dates and expert reports and depositions, to allow for a realistic period to review the large volumes of produced material, negotiate further stipulations of fact, where appropriate, and conduct depositions and expert discovery.

16. The Parties will endeavor to prevent any further requests for additional time, but limited extensions may become necessary if, for example, issues related to the collection and production of documents located abroad or in the custody of non-parties, or to the need for

testimony from non-parties (including Complainant's former employees) or individuals located abroad (including employees of Respondents). The Parties will work to limit such extension requests, including by working to facilitate consent for email service of subpoenas and provision of contact information, where available, but in the interest of full transparency, the Parties wish to note such possible issues for the Presiding Officer now.

17. Rule 102(a) of the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause."

18. The anticipated volume of production material, which may include up to multiple hundreds of thousands of documents and terabytes of data, is in line with the productions within the *Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited* in which Chief Administrative Law Judge Wirth granted an extension of 388 days, or slightly greater than one year. The Parties respectfully request that this case be similarly treated.

19. Pursuant to 46 C.F.R. Section 502.71(a), counsel for Complainant and counsel for Respondents have discussed this Motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement. The Parties each agree to the relief requested in this Motion.

WHEREFORE, Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc., and Respondents Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Limited, Italia Marittima S.p.A., Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd., pray that their Joint Motion to Extend Deadlines be granted.

Dated: April 25, 2025

Respectfully submitted,

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